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IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA, IN AND FOR HILLSBOROUGH COUNTY

CASE NO.: 25-CA-10255

CHRISTOPHER HANSON, individually
and as attorney for himself and
attorney/next friend for his
minor children (8 years old) and
(6 years old),

Plaintiffs,

v.

THIRTEENTH JUDICIAL CIRCUIT, CLERK
OF THE COURT FOR THE THIRTEENTH
JUDICIAL CIRCUIT, GINA JUSTICE
(AND/OR CURRENT COURT ADMINISTRATOR),
CHIEF JUDGE CHRISTOPHER C. SABELLA,
JUDGE KELLY AYERS, JUDGE MATTHEW
FELIX, MIKE MOORE,

Defendants.

HEARING HELD BEFORE:
HONORABLE EVAN G. FRAYMAN

DATE: January 13, 2026
TIME: 1:30 p.m. - 2:02 p.m.
PLACE: Via videoconference
REPORTED BY: Lorial Milazzo, RPR
Notary Public
State of Florida at Large

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(1) A-P-P-E-A-R-A-N-C-E-S

(2)

(3) Appeared Pro Se:

(4) CHRISTOPHER HANSON, Esq.

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(5) Tampa, Florida 33634

cahanson77@yahoo.com

(6)

(7) Appeared on behalf of Defendants Thirteenth Judicial
Circuit, Gina Justice (and/or current court

(8) administrator), Chief Judge Christopher C. Sabella, Judge
Kelly Ayers, and Judge Matthew Felix:

(9)

JESSICA LEE SCHWIETERMAN, Esq.

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(15) I-N-D-E-X

(16) Reporter's certificate.....29

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(1) P-R-O-C-E-E-D-I-N-G-S

(2) THE COURT: All right. Let's make sure I can
(3) see who everybody is and everybody can hear me all
(4) right.

(5) Miss Milazzo, our court reporter, can you hear
(6) me, ma'am?

(7) THE COURT REPORTER: Yes, Your Honor. Thank you
(8) for asking.

(9) THE COURT: Very good.

(10) Miss Schwieterman, can you hear me all right?

(11) MS. SCHWIETERMAN: Yes, I can, Your Honor.
(12) Thank you.

(13) THE COURT: All right. Mr. Hanson, can you hear
(14) me all right?

(15) MR. HANSON: Yes, Your Honor.

(16) THE COURT: All right. Now I've got an observer
(17) unidentified. Can you please unmute yourself and
(18) identify yourself for the Court.

(19) THE PARALEGAL: My name is Brittany. I'm a
(20) paralegal for the Thirteenth Circuit.

(21) THE COURT: Okay. Thank you.

(22) And then I've got Samsung SMS931U. Can you
(23) unmute yourself and identify yourself for the Court.
(24) Samsung SMS931U, can you identify --

(25) MR. F. HANSON: I'm sorry, Your Honor. My name

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(1) is Frank Hanson.

(2) THE COURT: Frank Hanson. All right.

(3) And then I've got Tracy Hanson. Can you hear me
(4) all right, ma'am? You're on mute.

(5) MS. T. HANSON: Yes, yes. Sorry. Yes, Your
(6) Honor. I apologize. I can hear you, sir.

(7) THE COURT: All right. And I've got a Jenny
(8) Raddatz. Can you hear me all right? You're on
(9) mute. There you go.

(10) MS. RADDATZ: Yes, sir. Hello.

(11) THE COURT: Hello.

(12) All right. It looks like I've got one more
(13) iPhone joining from the waiting room. Give that
(14) person a minute.

(15) Somebody who joined us as iPhone, can you unmute
(16) yourself and identify yourself for the Court,
(17) please.

(18) MS. HENDERSON: Yes. Hi, this is Nikki
(19) Henderson.

(20) THE COURT: All right. Is that C-K or K-K?

(21) MS. HENDERSON: N-I-K-K-I.

(22) THE COURT: Okay. All right. So I understand
(23) we have some observers here. If anybody is not
(24) actively participating in the proceeding or
(25) representing somebody actively participating in the

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(1) proceeding, I'm going to ask you to remain on mute;
(2) otherwise, we'll proceed as quickly as we can.

(3) We are here on Case Number 25- -- I guess it's
(4) 25-CA-10255. This is a proceeding in the Thirteenth
(5) Judicial Circuit Court in and for Hillsborough
(6) County, Florida. Case style is Christopher Hanson,
(7) Petitioner. I think it's individually and on behalf
(8) of his minor children. And it's against the
(9) Thirteenth Judicial Circuit Court, Chief Judge
(10) Christopher C. Sabella, Judge Kelly Ayers, Judge
(11) Matthew Felix, Court Administrator Gina Justice,
(12) Mike Moore, and Clerk of the Court Victor Crist.
(13) Those are all of the respondents.

(14) I believe, Miss Schwieterman, you represent all
(15) of the respondents?

(16) MS. SCHWIETERMAN: Your Honor, I'm only
(17) representing the served respondents, so that would
(18) be the Thirteenth Judicial Circuit, Miss Gina
(19) Justice or the court administrator, Chief Judge
(20) Christopher Sabella, and Judge Kelly Ayers, as well
(21) as Judge Matthew Felix.

(22) THE COURT: Okay. Hold on a moment. On behalf
(23) of the served defendants, and I'm going to put that
(24) specifically. Can you go through that list slowly
(25) for me.

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(1) MS. SCHWIETERMAN: Yes. The Thirteenth Judicial
(2) Circuit, the current court administrator, formerly
(3) Gina Justice. Now it is an interim or vacant
(4) position.

(5) THE COURT: Okay. Court administrator. I'm not
(6) going to --

(7) MS. SCHWIETERMAN: That's okay. Chief Judge
(8) Sabella.

(9) THE COURT: Okay.

(10) MS. SCHWIETERMAN: Judge Ayers and Judge Felix.

(11) THE COURT: All right. So prior Court
(12) Administrator Gina Justice has not been served, Mike
(13) Moore has not been served, and Clerk of the Court
(14) Victor Crist has not been served. Is that your
(15) representation?

(16) MS. SCHWIETERMAN: Gina Justice has been served,
(17) however, she is -- it's in her official capacity,
(18) and she is no longer in that role. So that
(19) administrator role has been served. But my
(20) understanding is the clerk of the court has not been
(21) served and neither has Mike Moore.

(22) THE COURT: Okay. All right. Perfect. All
(23) right.

(24) And then, Mr. Hanson, you are representing
(25) yourself; correct?

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(1) MR. HANSON: Yes, Your Honor.

(2) THE COURT: All right. It looks like I've got
(3) one more party coming in. Excuse me.

(4) All right. Mr. Lanham, can you hear me all
(5) right? You're on mute, sir. Mr. Lanham, Matt
(6) Lanham is what I'm reading on my Zoom screen. Can
(7) you hear the Court, and if so, can you please unmute
(8) yourself and confirm that you can hear the Court.

(9) MR. LANHAM: Yes, sir, I can hear.

(10) THE COURT: All right. You can go back on mute,
(11) unless you're representing a party involved in the
(12) dispute.

(13) All right. So we're here for a case management
(14) conference. Essentially this is just my opportunity
(15) to I guess sort of introduce myself, give you kind
(16) of the lay of the land of where I think the case is
(17) at from the Court's perspective and what I
(18) anticipate where we're headed from here.

(19) I have reviewed the -- I think it's the
(20) amended -- now the amended verified petition,
(21) complaint for writ of mandamus, declaratory relief,
(22) and attorney's fees. I've also reviewed the motion
(23) for immediate issuance and alternative writ of
(24) mandamus and the response in opposition to the
(25) amended petition for writ of mandamus and

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(1) incorporated memorandum of law. I've reviewed all
(2) of the Rules of Civil Procedure, as well as the
(3) Rules of Judicial Practice and General
(4) Administration that govern cases such as this
(5) seeking access to judicial records, whether they be
(6) court records or administrative records.

(7) What I can tell you is I'm in the process of
(8) finalizing an alternative writ of mandamus
(9) establishing what I am and am not finding that I
(10) have jurisdiction on and what does and does not
(11) establish a prima facie case at least warranting a
(12) response under Rule 1.140. I won't draw you out in
(13) suspense on that, and I'll give you an idea, because
(14) I was just in the process of drafting that.

(15) But what I am finding is that, A, the Court is
(16) without jurisdiction to address claims against
(17) individual judicial officers that relate to access
(18) to administrative records. The rule on that one is
(19) 2.420(1), and I believe that that specifically
(20) states that when a judge who has denied a request
(21) for access to records is the custodian, the action
(22) shall be filed in the court having appellate
(23) jurisdiction to review the decisions of the judge
(24) denying access, which in this case, of course, would
(25) be the Second DCA.

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(1) So to the extent I am granting the alternative
(2) writ, it will exempt out any claims against the
(3) individual judges -- that would be Judge Sabella,
(4) Ayers, and Felix -- for administrative records to
(5) the extent that they are alleged to be the
(6) custodians of such records. In addition, I also
(7) found that there is a lack of prima facie showing
(8) for entitlement to declaratory relief under Chapter
(9) 86 just as a matter of pleading.

(10) But notwithstanding those two exceptions, I'm
(11) otherwise going to be issuing the alternative writ
(12) directing the defendants collectively to respond to
(13) the amended complaint, as that's defined in my
(14) order, within the time period and otherwise in
(15) accordance with Rule 1.140 of the Florida Rules of
(16) Civil Procedure. So that's just a general sense of
(17) where I'm at and what I'm doing.

(18) Yes, Mr. Hanson, I'm going to give you a chance
(19) to speak in a moment. I just wanted to go through
(20) my thoughts before I opened the floor. So go ahead.
(21) You are the petitioner. I'll let you speak first.

(22) MR. HANSON: I understand, Your honor. I wasn't
(23) being impatient on that. Just something happened
(24) with my volume, and I can barely hear you. So I
(25) just was going to ask if you could just hold off for

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(1) one second while I try and get the volume back up.

(2) THE COURT: Okay. I don't know when that hand
(3) went up. I apologize. I was sort of looking
(4) askance at another computer screen.

(5) MR. HANSON: And I could kind of hear you, so it
(6) wasn't critical. I don't even see where the volume
(7) up is. Maybe it's in --

(8) THE COURT: So there's two volume settings. One
(9) is your computer itself. The other is under the
(10) audio tab at the bottom left of your Zoom screen.
(11) If you click on the up arrow and you go into your
(12) audio settings, you can affect the volume level
(13) there.

(14) MR. HANSON: Directly from the Zoom?

(15) THE COURT: Yeah, well, if your Zoom volume is
(16) down. So there is a little caret. It's like an up
(17) arrow next to the audio microphone. Click that, and
(18) then the bottom item is audio settings. Click that,
(19) and that should open a screen with output volume and
(20) microphone input volume so you can adjust those and
(21) test your speakers. If it's turned all the way up,
(22) then it's a computer problem.

(23) MR. HANSON: Yeah, it's turned all the way up,
(24) and I'm just on my phone. So it's almost like it
(25) went to handset phone speaker. I apologize for the

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(1) delay.

(2) THE COURT: That's okay. That I can't help you
(3) with. I am not a phone person.

(4) MR. HANSON: Oh, here is audio. I'm sorry, Your
(5) Honor, one more time, you said it's under audio
(6) and --

(7) THE COURT: I think you've already confirmed
(8) that the audio setting was turned all the way up
(9) volume-wise, so I'm not sure --

(10) MR. HANSON: On my phone it is. It's the app
(11) where I'm having a little bit of trouble here.

(12) THE COURT: So it's the microphone. There is a
(13) little up arrow next to the microphone, and you
(14) click the up arrow and then go into audio settings,
(15) and then it will show output volume for you to test
(16) the speaker, and you can see whether it's turned all
(17) the way up to a hundred percent.

(18) MR. HANSON: I do apologize, Your Honor. I
(19) guess what I'll do is just log into my computer,
(20) because it's not -- I don't see the microphone. I
(21) see a mute button, but I'm not seeing --

(22) THE COURT: Yeah, I don't know where the audio
(23) settings are in the Zoom app on the phone. I work
(24) on the computer side.

(25) MR. HANSON: And again, Your Honor, I'm sorry

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(1) for the delay here.

(2) THE COURT: That's okay.

(3) MS. HENDERSON: It's under the more. Like if
(4) you click the more icon, like you'll be able to go
(5) into the setting. I don't know if you have that.

(6) MR. HANSON: Yeah, I see the more one, and then
(7) I don't see --

(8) MS. HENDERSON: Then you go into settings after
(9) that, and then the audio is the bottom.

(10) THE COURT: Thank you, Miss Henderson.

(11) MS. HENDERSON: You're welcome.

(12) MR. HANSON: I have not had this issue before.
(13) I'm just joining the meeting now, Your Honor, on the
(14) separate -- can you hear me okay?

(15) THE COURT: I can hear you just fine. Can you
(16) hear me?

(17) MR. HANSON: Yes. Now I can, Your Honor. Thank
(18) you very much.

(19) THE COURT: All right. So I've already
(20) indicated sort of where the case is heading from the
(21) Court's perspective, and the only thing I left out
(22) was that upon the filing of the defendants'
(23) responses or upon the expiration of the time for a
(24) response pursuant to the rule, the parties shall set
(25) a CMC for the purpose of setting an evidentiary or

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(1) other hearing to the extent same is required for the
(2) Court to decide the merits of the case. So that was
(3) the only thing that I had left out in terms of the
(4) time planning.

(5) All right. Let me hear from Mr. Hanson first if
(6) there's anything he would like to address with the
(7) Court, and then I'll hear from Miss Schwieterman.

(8) MR. HANSON: Yes, Your Honor. I just want to
(9) briefly review, as you're drafting that order, the
(10) basis for my right to the access to these public
(11) records, and that's --

(12) THE COURT: That's not necessary. I'm not --
(13) the order doesn't go into the basis. It says
(14) whether or not you've established a prima facie case
(15) on the face of the document, which I have concluded
(16) that at least in part you have. So we're not here
(17) to argue the merits of your petition. I've already
(18) concluded that procedurally I'm required to issue
(19) the alternative writ if I find that there is at
(20) least a sufficient basis to have pled a prima facie
(21) case.

(22) Miss Schwieterman and her clients will now have
(23) the opportunity obviously to respond. Whether
(24) that's by way of motion to dismiss or an answer, I
(25) can't begin to conclude what it is that they are

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(1) going to file in response, but I can't -- as I
(2) understand it under the applicable case law and
(3) rules, I can't simply jump right to the merits.
(4) Even though they did file a -- even though they did
(5) file a response in opposition, technically I can't
(6) consider that and jump through the process of not
(7) issuing the alternative writ.

(8) So first I issue the alternative writ. Then
(9) they file an answer slash motion to dismiss or
(10) whatever it is that they want to do under 1.140, and
(11) then we come back for a determination on the merits.

(12) MR. HANSON: Where I was going with that, Your
(13) Honor, is the timelines and what additional options
(14) the Court gives the Thirteenth Circuit in defending
(15) this, and I need to review the Rule 2.420(1) that
(16) provides for expedited review of these mandamus
(17) actions.

(18) THE COURT: Correct, but the rule specifically
(19) says under 2.420 -- actually under 1.630 with the
(20) extraordinary remedies it requires me to give them,
(21) by way of due process, the opportunity to respond.
(22) So the first step that has to happen is I grant the
(23) preliminary -- we'll call it the alternative writ.
(24) Then they get an opportunity to respond under the
(25) rules, which gives them twenty days. That's right

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(1) in 1.630.

(2) After that we can set an expedited hearing on
(3) the merits, but until we're sort of at issue I've
(4) got to give them the due process right to respond,
(5) and I got to give them the twenty days within which
(6) to do that.

(7) MR. HANSON: Okay. And, Your Honor, I would
(8) argue that they've had a lot more than twenty days
(9) since they've been formally served, and I ask the
(10) Court to issue a --

(11) THE COURT: I'll take full responsibility for
(12) the delay in that regard. I'll be honest with you,
(13) Mr. Hanson. This is the first time I've ever seen a
(14) motion or a petition for mandamus relief at the
(15) circuit court level, so I wasn't a hundred percent
(16) familiar with the precise procedure, and it's a
(17) little bit esoteric, to say the least. It's not
(18) straight out in the Rules of Civil Procedure. You
(19) got to kind of comb through the Rules of Judicial
(20) Practice and General Administration in order to find
(21) how this procedure works.

(22) And I certainly appreciate you and Miss
(23) Schwieterman educating me on that process, and I
(24) think I've done my best to get us kind of back up to
(25) speed. But the delay in that regard is of my own

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(1) making, so I apologize for that.

(2) MR. HANSON: Okay. But given that delay and the
(3) expedited nature that's written right into the rule,
(4) I'd like to at least make a record of some arguments
(5) about the events to date and why even a more
(6) accelerated path is appropriate in these facts.

(7) THE COURT: Mr. Hanson, I'm going to cut you
(8) off. We are not here on a notice of hearing for the
(9) substance of your arguments, and I guarantee you I
(10) have read every one of your submissions, voluminous
(11) as they are, including the attachments that you've
(12) submitted. I am well familiar with your position.

(13) I understand your request for expedited relief,
(14) and when they have answered or filed a motion in
(15) response, you can certainly request an expedited
(16) hearing, which is why I'm including in my order that
(17) the parties are to set a CMC immediately upon the
(18) expiration of the answer time so that we can get
(19) this matter back before the Court without any
(20) further delay.

(21) But it's not necessary for us to rehash the
(22) record that you have well-established in the
(23) documentation that you have submitted to the Court.

(24) MR. HANSON: Your Honor, were you able to read
(25) my reply to the attorney general's objection to the

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(1) petition?

(2) THE COURT: I have.

(3) MR. HANSON: The one that I just sent over
(4) today?

(5) THE COURT: I think it was an e-mail, but it
(6) wasn't today. It was a couple days ago.

(7) MR. HANSON: No, no. This was something that I
(8) e-mailed over early this morning and e-filed early
(9) this morning.

(10) THE COURT: No, I haven't seen anything that was
(11) filed today. And again, we're not here on the
(12) merits of anything. I've made the preliminary
(13) determination to issue the alternative writ. I'm
(14) not going to hear any further argument on that.

(15) MR. HANSON: Your Honor, I understand that you
(16) don't want to hear the facts, and none of the
(17) judges --

(18) THE COURT: No, that's not what I said,
(19) Mr. Hanson. Mr. Hanson, I said I've reviewed the --

(20) MR. HANSON: I understand that's what you're
(21) saying.

(22) THE COURT: No, you're going to listen to me or
(23) I'm going to mute you; okay? I have reviewed the
(24) facts. Because I have reviewed the facts, I have
(25) made the preliminary determination that you have

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(1) made a prima facie case warranting a response. They
(2) are now entitled to respond. I don't need to hear
(3) you reiterate the facts that I've already read in
(4) exhaustive fashion.

(5) So we're only here on a case management
(6) conference, not on a substantive hearing. You'll
(7) have ample opportunity to present your evidence and
(8) to present your argument at a merits hearing. This
(9) is not that; okay?

(10) MR. HANSON: Your Honor, so in terms of your
(11) review of the materials, I would hope that there
(12) would be a bit more empathy for my position and the
(13) need to get a record out, given the events that have
(14) taken place to date, and I would expect that perhaps
(15) that the Court would allow some accelerated path
(16) beyond the full twenty days again now.

(17) THE COURT: We're retreading on old ground at
(18) this point, Mr. Hanson, so unless you have something
(19) new to present to the Court that's related to the
(20) case management conference or my alternative writ of
(21) mandamus, I am going to move on to Miss Schwieterman
(22) and let her make some comments here before we
(23) conclude.

(24) So, Miss Schwieterman --

(25) MR. HANSON: So you're refusing to let me make a

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(1) further record; is that fair?

(2) THE COURT: I have established, Mr. Hanson, that
(3) your record is in documented form exhaustively
(4) stating your cause. This is not --

(5) MR. HANSON: And I'm --

(6) THE COURT: No, you're going to listen again.
(7) This is not a merits hearing. There is no argument
(8) to be presented. There is no record to be made,
(9) because I am not making any decisions today; okay?
(10) So simply giving you the floor to reiterate
(11) everything that you have demonstrated to the Court
(12) in your voluminous filings is just unnecessary;
(13) okay?

(14) MR. HANSON: You're telling me what I'm going to
(15) say.

(16) THE COURT: Your record has been made in
(17) writing.

(18) MR. HANSON: And I understand that you're saying
(19) that, Your Honor. Are you refusing to allow me to
(20) speak more? Because I won't --

(21) THE COURT: I'm allocating the time in this
(22) hearing equitably among the parties. I've gone
(23) around and around with you and explained the Court's
(24) perspective and the fact that I'm actually granting
(25) the relief that you've requested, and so I'm now

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(1) going to give Miss Schwieterman an opportunity to
(2) respond within the time frame of this hearing.

(3) If you'd like to continue to monopolize the
(4) hearing and continue to press a point that I've
(5) already essentially ruled against you on, you can
(6) continue to do so, but it's not helping your case.

(7) MR. HANSON: I think for me it's more important
(8) to make a record, so that would be my preference and
(9) my request.

(10) THE COURT: All right. Well, I'm already
(11) denying the request to make a further record. I've
(12) made it very clear that the record has been
(13) sufficient to enable the Court to make a
(14) determination on the alternative writ of mandamus,
(15) which will issue forthwith immediately upon the
(16) conclusion of this hearing.

(17) So, Miss Schwieterman, do you have any comments
(18) for the Court?

(19) MR. HANSON: And I apologize, Your Honor. The
(20) last thing I want to add --

(21) THE COURT: No, Mr. Hanson, I've muted you,
(22) because I've already made it clear that you have had
(23) enough floor time and it is only fair to give
(24) Miss Schwieterman an opportunity to respond.

(25) MS. SCHWIETERMAN: And, Your Honor, I'm just

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(1) seeking clarification, which I believe may be in the
(2) order, but I just want to ensure that I have all of
(3) my dates and everything clear. So you will be
(4) issuing -- you'll be issuing an alternative writ,
(5) which will address jurisdictional issues and things
(6) that I more or less would not need to respond to; is
(7) that correct?

(8) THE COURT: That's correct.

(9) MS. SCHWIETERMAN: Okay.

(10) THE COURT: Essentially what I'm saying is that
(11) any request for administrative record sought from
(12) Chief Judge Chris Sabella, Judge Kelly Ayers, and
(13) Judge Matthew Felix would not be within the purview
(14) of my jurisdiction.

(15) MS. SCHWIETERMAN: Okay. Thank you. And I will
(16) have twenty days from the date the order is entered;
(17) is that correct?

(18) THE COURT: That's per Rule 1.140, correct.

(19) MS. SCHWIETERMAN: Thank you. I have no further
(20) questions.

(21) THE COURT: All right. I'm going to open or
(22) allow Mr. Hanson to unmute himself.

(23) Mr. Hanson, if you're there, you can unmute
(24) yourself. Do you have any questions regarding what
(25) the Court has ordered or is anticipating ordering in

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(1) the alternative writ?

(2) MR. HANSON: Yes, Your Honor. The Court is
(3) still going to order production?

(4) THE COURT: No, I'm not ordering production of
(5) anything. The process is very straightforward. You
(6) have established a prima facie case. That requires
(7) a response from the other side. Once they have
(8) responded, then we have to have a merits
(9) determination as to whether or not the relief that
(10) you're seeking is appropriate, and at that hearing
(11) you'll be able to argue everything you want to
(12) argue, present all of your evidence, and persuade
(13) the Court or not as to whether or not you're
(14) entitled to the relief sought. That's where the
(15) decision will occur.

(16) Are you there? Did you freeze? He may have
(17) frozen. We're going to give him a minute.

(18) MS. SCHWIETERMAN: And, Your Honor, when
(19) Mr. Hanson does come back, I do have one more I
(20) guess scheduling question that will impact
(21) Mr. Hanson as well.

(22) THE COURT: All right. Just hold for a moment
(23) until we can get him back on the line.

(24) Mr. Hanson, are you there?

(25) MR. HANSON: Yes. I don't know what happened

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(1) there. I was --

(2) THE COURT: Okay. I'm not sure where you -- I'm
(3) not sure where you froze, so --

(4) MR. HANSON: It was probably at least forty-five
(5) seconds that I was trying to figure it out. It said
(6) I was still in the room. I just --

(7) THE COURT: What's the last thing you heard me
(8) say? Did you freeze again?

(9) MR. HANSON: No, I'm still here. I'm just
(10) trying to remember, because I was frantic trying to
(11) get back in and it --

(12) THE COURT: That's all right. I'll try and
(13) encapsulate what I was saying, but basically you
(14) were asking if I was going to order production, and
(15) my answer to that was, no, the procedure isn't that
(16) I make the determination on the merits of your
(17) mandamus petition. All I do is make a determination
(18) that you've established a prima facie case. Then
(19) the defense is entitled to assert their defenses.

(20) Then we have a merits hearing, and at that
(21) merits hearing you'll be given the opportunity to
(22) present your evidence supporting your request for
(23) the records, and if at that hearing I conclude that
(24) you have persuaded me that you're entitled to the
(25) relief, then you'll get an order directing

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(1) production of the records. But that's how the
(2) procedure has to work, according to the rules.

(3) MR. HANSON: And I misspoke, Your Honor. I
(4) understand that the order is for them to offer an
(5) explanation or a justification.

(6) THE COURT: Okay.

(7) MR. HANSON: But the question I was trying to
(8) get to is you mentioned that you were not going to
(9) cover Judge Ayers -- the individual judges for
(10) administrative records.

(11) THE COURT: Correct.

(12) MR. HANSON: The court as the custodian can
(13) still be compelled on that; correct? It's not as
(14) though all Judge Ayers' records --

(15) THE COURT: Correct. It's only -- it literally
(16) says when a judge who has been denied a request for
(17) access to records is the custodian. So in other
(18) words, if Judge Ayers, for example, were the
(19) custodian of certain records that were otherwise
(20) defined as administrative records, then you would
(21) have to seek relief at the Second DCA, but if those
(22) very same records are held by a custodian that is
(23) otherwise named, for example, the clerk of the
(24) court, then relief can certainly be provided in this
(25) court.

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(1) MR. HANSON: And, Your Honor, I think one issue
(2) that may arise is what actually qualifies as a
(3) judicial record versus an administrative record.

(4) THE COURT: I anticipate that will be an issue,
(5) sure.

(6) MR. HANSON: Okay.

(7) THE COURT: But they are well-defined terms in
(8) the context of the rules, and I've laid those
(9) definitions out in my alternative writ, so it should
(10) be clear to everybody what it is that I am and am
(11) not doing, at least to the best of my ability. So
(12) we'll go from here.

(13) All right. Miss Schwieterman, you mentioned you
(14) had one more question.

(15) MS. SCHWIETERMAN: Yes. And just so that I'm
(16) clear, you stated that we will be scheduling a CMC,
(17) and then from there we will be scheduling our
(18) evidentiary hearing; is that correct?

(19) THE COURT: If an evidentiary hearing is
(20) necessary, yes.

(21) MS. SCHWIETERMAN: Okay.

(22) THE COURT: I mean, my anticipation is the
(23) quickest way for us to get this back for our final
(24) determination is twenty days runs, you all set a CMC
(25) for the twenty-first day, and we get it right on the

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(1) calendar and get it determined. It's not my
(2) inclination to delay any further than that.

(3) MS. SCHWIETERMAN: Okay. And then my next
(4) question would be for scheduling purposes, because
(5) this case is in the Thirteenth Circuit, however, you
(6) are not, would it be easier for us to contact your
(7) judicial assistant to get that on your calendar?

(8) THE COURT: Yes. Absolutely.

(9) MS. SCHWIETERMAN: Thank you.

(10) THE COURT: All right.

(11) MR. HANSON: Your Honor, just one more
(12) administrative issue and moving forward, depending
(13) on how the order finding a prima facie case in
(14) certain aspects and not in others, if I feel like I
(15) need depositions or discovery, how would I go about
(16) achieving that? I tried to set depositions with
(17) some of the defendants earlier, and I've received no
(18) response or cooperation.

(19) THE COURT: I would anticipate that Rule 1.280
(20) applies to a mandamus petition just as any other
(21) civil action, so I would assume discovery is
(22) available to you. If you're not getting what you
(23) need, then file an appropriate motion.

(24) MR. HANSON: Okay. And then, Your Honor, the
(25) last thing I would offer is that there were things

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(1) in the reply that I put together based upon the
(2) recent response from the attorney general's office
(3) that I would like to argue and offer as argument to
(4) encourage you to strip away certain defenses and
(5) exemptions, because I don't think that they should
(6) apply at this point.

(7) THE COURT: Those are issues that we will
(8) address at the merits hearing. Essentially I
(9) haven't considered anything in the response in
(10) opposition at this juncture. I have limited my
(11) analysis to the consideration of the facial pleading
(12) that you submitted and determined what is and is not
(13) facially sufficient. That's all I've done.

(14) So with regard to any response or reply to their
(15) defenses, those are all preserved and will be
(16) addressed at a merits hearing subsequent to the
(17) filing of the answer; okay?

(18) MR. HANSON: Okay. I just would proffer that
(19) argument, then, just for purposes of the record.

(20) THE COURT: Just make sure it gets in the court
(21) record, Mr. Hanson. I am not going to take up our
(22) time today. We've got limited time set for this
(23) hearing; all right? With that, any further
(24) questions?

(25) MS. SCHWIETERMAN: No, Your Honor.

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(1) THE COURT: All right. I'll get the alternative
(2) writ out momentarily, and thank you all for your
(3) time.

(4) MS. SCHWIETERMAN: Thank you.

(5) MR. HANSON: Thank you.

(6) (Hearing adjourned at 2:02 p.m. on
(7) 1/13/26.)

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(1) STATE OF FLORIDA)

(2) COUNTY OF SARASOTA)

(3)

(4) I, LORIAL L. MILAZZO, Registered Professional

(5) Reporter, certify that I was authorized to and did

(6) stenographically report the foregoing proceedings, pages

(7) 1 through 28, and that the transcript is a true and

(8) complete record of my stenographic notes.

(9)

(10)

(11) DATED this 15th day of January, 2026.

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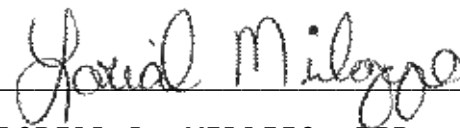
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LORIAL L. MILAZZO, RPR

Notary Public

State of Florida

My Commission #HH 483860

Expires: March 02, 2028



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